



General Assembly

February Session, 2026

Substitute Bill No. 5348



***AN ACT REQUIRING NOTIFICATION TO THE LEGISLATIVE LEADERS
OF THE PROPOSED ADOPTION OF AGENCY REGULATIONS AND
THE STATE BUILDING AND FIRE CODES.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (a) of section 4-168 of the general statutes is
2 repealed and the following is substituted in lieu thereof (*Effective October*
3 *1, 2026, and applicable to regulations noticed on and after said date*):

4 (a) Except as provided in subsections (g) and (h) of this section, an
5 agency, not less than thirty days prior to adopting a proposed
6 regulation, shall (1) post a notice of its intended action on the
7 eRegulations System, which notice shall include (A) a specified public
8 comment period of not less than thirty days, (B) a description
9 sufficiently detailed so as to apprise persons likely to be affected of the
10 issues and subjects involved in the proposed regulation, (C) a statement
11 of the purposes for which the regulation is proposed, (D) a reference to
12 the statutory authority for the proposed regulation, (E) when, where
13 and how interested persons may obtain a copy of the small business
14 impact and regulatory flexibility analysis required pursuant to section
15 4-168a, and (F) when, where and how interested persons may present
16 their views on the proposed regulation; (2) post a copy of the proposed
17 regulation on the eRegulations System; (3) give notice electronically to
18 each joint standing committee of the General Assembly having
19 cognizance of the subject matter of the proposed regulation, the speaker

20 of the House of Representatives, the president pro tempore of the Senate
21 and the majority and minority leaders of the House Representatives and
22 Senate; (4) prior to January 1, 2017, give notice electronically or provide
23 a paper copy notice, if requested, to all persons who have made requests
24 to the agency for advance notice of its regulation-making proceedings;
25 (5) provide a paper copy or electronic version of the proposed regulation
26 to persons requesting it; and (6) prepare a fiscal note, including an
27 estimate of the cost or of the revenue impact (A) on the state or any
28 municipality of the state, and (B) on small businesses in the state,
29 including an estimate of the number of small businesses subject to the
30 proposed regulation and the projected costs, including, but not limited
31 to, reporting, recordkeeping and administrative, associated with
32 compliance with the proposed regulation and, if applicable, the
33 regulatory flexibility analysis prepared under section 4-168a. The
34 governing body of any municipality, if requested, shall provide the
35 agency, within twenty working days, with any information that may be
36 necessary for analysis in preparation of such fiscal note. On and after
37 January 1, 2017, each such agency shall mail a paper copy of the notice
38 posted pursuant to subdivision (1) of this subsection, not later than five
39 days after posting such notice, to any person who has requested
40 advance notice of the agency's regulation-making proceedings on or
41 after October 1, 2016.

42 Sec. 2. Subsection (c) of section 29-252b of the general statutes is
43 repealed and the following is substituted in lieu thereof (*Effective October*
44 *1, 2026, and applicable to any code noticed on and after said date*):

45 (c) Prior to the adoption of the State Building Code and any
46 amendments thereto, the State Building Inspector shall (1) post any
47 proposed code, a statement of purpose for which the proposed code is
48 proposed, a fiscal note associated with compliance with the proposed
49 code prepared pursuant to section 4-168, as amended by this act, and a
50 regulatory flexibility analysis prepared pursuant to section 4-168a on
51 the Internet web site of the Department of Administrative Services, (2)
52 give notice electronically to the joint standing committee of the General
53 Assembly having cognizance of matters relating to public safety and

54 security, the speaker of the House of Representatives, the president pro
55 tempore of the Senate and the majority and minority leaders of the
56 House Representatives and Senate, (3) give notice to any person who
57 has requested the State Building Inspector for advance notice of its
58 proposed code adoption proceedings, (4) provide for a public comment
59 period of forty-five days following the posting of such proposed code,
60 fiscal note and regulatory flexibility analysis, and (5) hold a public
61 hearing on the proposed code not less than twenty nor more than thirty-
62 five days after such posting.

63 Sec. 3. Subsection (c) of section 29-291e of the general statutes is
64 repealed and the following is substituted in lieu thereof (*Effective October*
65 *1, 2026, and applicable to any code noticed on and after said date*):

66 (c) Prior to the adoption of the State Fire Prevention Code and any
67 amendments thereto, the State Fire Marshal shall (1) post any proposed
68 code, a statement of purpose for which the proposed code is proposed,
69 a fiscal note associated with compliance with the proposed code
70 prepared pursuant to section 4-168, as amended by this act, and a
71 regulatory flexibility analysis prepared pursuant to section 4-168a on
72 the Internet web site of the Department of Administrative Services, (2)
73 give notice electronically to the joint standing committee of the General
74 Assembly having cognizance of matters relating to public safety and
75 security, the speaker of the House of Representatives, the president pro
76 tempore of the Senate and the majority and minority leaders of the
77 House Representatives and Senate, (3) give notice to any person who
78 has requested the State Fire Marshal for advance notice of the proposed
79 code adoption proceedings, (4) provide for a public comment period of
80 forty-five days following the posting of such proposed code, fiscal note
81 and regulatory flexibility analysis, and (5) hold a public hearing on the
82 proposed code not less than twenty nor more than thirty-five days after
83 such posting.

84 Sec. 4. Subsection (c) of section 29-292a of the general statutes is
85 repealed and the following is substituted in lieu thereof (*Effective October*
86 *1, 2026, and applicable to any code noticed on and after said date*):

87 (c) Prior to the adoption of the Fire Safety Code and any amendments
 88 thereto, the State Fire Marshal shall (1) post any proposed code, a
 89 statement of purpose for which the proposed code is proposed, a fiscal
 90 note associated with compliance with the proposed code prepared
 91 pursuant to section 4-168, as amended by this act, and a regulatory
 92 flexibility analysis prepared pursuant to section 4-168a on the Internet
 93 web site of the Department of Administrative Services, (2) give notice
 94 electronically to the joint standing committee of the General Assembly
 95 having cognizance of matters relating to public safety and security, the
 96 speaker of the House of Representatives, the president pro tempore of
 97 the Senate and the majority and minority leaders of the House
 98 Representatives and Senate, (3) give notice to any person who has
 99 requested the State Fire Marshal for advance notice of the proposed code
 100 adoption proceedings, (4) provide for a public comment period of forty-
 101 five days following the posting of such proposed code, fiscal note and
 102 regulatory flexibility analysis, and (5) hold a public hearing on the
 103 proposed code not less than twenty nor more than thirty-five days after
 104 such posting.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026, and applicable to regulations noticed on and after said date</i>	4-168(a)
Sec. 2	<i>October 1, 2026, and applicable to any code noticed on and after said date</i>	29-252b(c)
Sec. 3	<i>October 1, 2026, and applicable to any code noticed on and after said date</i>	29-291e(c)
Sec. 4	<i>October 1, 2026, and applicable to any code noticed on and after said date</i>	29-292a(c)

Statement of Legislative Commissioners:

Throughout the bill, "majority and minority leaders of the House" was changed to "majority and minority leaders of the House of Representatives" for statutory consistency.

GAE *Joint Favorable Subst. -LCO*